

ORDINANCE NO. \_\_\_\_\_

ENTITLED: "AN ORDINANCE DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR SWORN OFFICERS OF THE CHEYENNE POLICE DEPARTMENT FOR FISCAL YEAR 2018-2019."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. DEFINITIONS.

EMPLOYEE/EMPLOYEES - Employee or employees as used in this ordinance means sworn police officers, below the rank of chief.

Section 2. APPLICABILITY; AUTHORIZED POSITIONS.

The terms and conditions of employment as set forth herein shall apply to all employees as defined herein. The Cheyenne Police Department shall consist of no more than one hundred six (106) full-time employees as defined herein.

Section 3. PURPOSE.

The purpose of this ordinance is to define the terms and conditions of employment for employees. The rights contained herein are in addition to any rights an employee may have under the Cheyenne Police Department Policy Manual (as that document may be amended at any time, before or after passage of this ordinance), and applicable federal, state and local laws. In areas of conflict between this ordinance and established federal, state or local laws, the latter shall govern. This ordinance comprises the exclusive statement of employee terms and conditions of employment. Any other agreement with or representation made to any employee by a supervisor, agent or officer of the City of Cheyenne which is in conflict with or in addition to this ordinance is specifically disclaimed by the City of Cheyenne, except for the Cheyenne Police Department Policy Manual and except for agreements entered into by and between supervisory personnel and employees establishing specific job expectations, requirements or discipline which are part of the employee's official personnel file maintained by the Human Resources Department.

Section 4. CHEYENNE POLICE DEPARTMENT POLICY MANUAL AND BENEFIT POLICY.

The Cheyenne Police Department Policy Manual including the benefit policy set forth in Exhibit A, as they exist or are amended from time to time, are incorporated herein and made part of these terms and conditions of employment and shall apply only to sworn police officers.

Section 5. COMPENSATION.

The compensation paid to employees is set forth in Exhibits B and C, which are attached and incorporated by reference herein. The compensation appropriate for the aforementioned employees shall be computed with reference to the grade of the individual employee. Assignment of employees to the appropriate grade under the new plan will be made on a case by case basis, based upon employee hire date or promotion date, by the chief with the assistance of the director of Human Resources. The governing body reserves the right, in its sole discretion, to modify or change pay scales. Effective July 1, 2008, employees will receive, in addition to basic pay, longevity pay as set forth in Exhibit D, attached hereto and incorporated by reference herein. An individual who is recalled to City employment within two (2) years after having been subjected to a reduction in force (RIF) will be paid longevity based on total months of service, regardless of whether the months of service are consecutive. Effective July 1, 2017, employees will receive, in addition to basic pay, specialty on call pay as set forth in Exhibit E, attached hereto and incorporated by reference herein.

Effective July 1, 2004, for any employee called to active military duty, the City of Cheyenne will compensate the difference between the employee's City base pay and military base pay, provided the military base pay is lower than the City base pay. Base pay is defined as the regular pay the employee would have received from the City had they not been called to active military duty.

**Section 6. CONTINUATION OF EMPLOYMENT.**

Any employee covered by this ordinance who continues his or her term of employment during and beyond the term of this ordinance shall be entitled to advancement annually (subject to the provisions of Section 5), as set forth in Exhibits B and C, upon recommendation of the employee's supervisor, if the mayor and council approve funds to pay the increases.

**Section 7. HEALTH, MEDICAL, DENTAL AND LIFE INSURANCE.**

The City will negotiate with or seek bids from qualified health insurance providers and will enter into a contract with a qualified carrier or carriers to provide employees with a medical insurance plan, which is on file in the Human Resources Department, for fiscal year ~~2017-2018~~ **2018-2019**. Each uniformed City employee eligible for health insurance coverage shall contribute ~~eleven ten~~ percent (~~11~~ **10**%) of the monthly health insurance premium attributable to the level of coverage selected by that employee. This payment will be a payroll deduction.

The City will maintain dental insurance on employees pursuant to the dental plan on file in the Human Resources Department. The City will pay premiums for employees. If an employee wishes to maintain dental insurance under this plan for eligible dependents as defined in Appendix B of the dental plan, he or she may do so by paying the premium for the additional person(s) insured.

The City will pay premiums for term life insurance on all employees in accordance with the term life insurance plan on file in the Human Resources Department and City Clerk's Office.

**Section 8. TERM.**

The terms and conditions of employment set forth in this ordinance shall apply for fiscal year ~~2017-2018~~ **2018-2019** and shall be approved as part of the budget process. This ordinance will terminate at the beginning of fiscal year ~~2018-2019~~ **2019-2020**.

**Section 9. REPEAL OF OTHER ORDINANCES.**

All other ordinances establishing specific terms and conditions of employment are repealed.

**Section 10. SEVERABILITY.**

If any clause, sentence, paragraph or part of this ordinance or application to any person or circumstance shall for any reason be adjudged by a court of competent jurisdiction to be invalid such judgment shall not affect, impair or invalidate the remainder of this agreement.

**Section 11.** This ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: \_\_\_\_\_  
SECOND READING: \_\_\_\_\_  
THIRD AND FINAL READING: \_\_\_\_\_

\_\_\_\_\_  
Marian J. Orr, Mayor

(SEAL)  
ATTEST:

\_\_\_\_\_  
Carol Intlekofer, City Clerk  
Published: Wyoming Tribune Eagle

## **EXHIBIT A**

### **EMPLOYEE WAGE AND BENEFIT POLICY**

THIS POLICY COVERS ALL COMMISSIONED OFFICERS OF THE CITY OF CHEYENNE POLICE DEPARTMENT.

#### **1. MONTHLY WAGES.**

##### **a. Wages.**

Effective July 1, 1997, all commissioned officers became covered by the City of Cheyenne pay plan.

All step increases shall be on the officer's original date of employment or promotion date.

All anniversary raises will be given only after the officer has received an overall standard performance evaluation. If any employee is denied a step increase due to below standard evaluation, that employee will be evaluated at three month intervals. Whenever the evaluation improves to an overall standard performance, the step increase will take effect pursuant to normal step increase procedures, i.e., the first day of the month, received that month, after the first day received the following month. Below standard evaluations require documentation that the officer has been counseled in described areas of weakness.

##### **b. Lateral Transfer Program.**

Lateral entry candidates must be currently certified as a Wyoming peace officer or in a state with a reciprocity agreement with Wyoming. If not currently certified in Wyoming, lateral entry candidates must take and pass the Wyoming POST challenge test, as well as the Wyoming criminal law and domestic violence courses offered through the Wyoming Law Enforcement Academy.

Subject to these requirements, the department offers a lateral transfer program for officers with prior qualifying law enforcement experience. All officers will be hired at a Grade 201 - Step 1. Officers completing a minimum of six months of the department's eighteen month probationary period may, at the chief's discretion, be placed in the step program according to their experience as follows:

|                             |                    |
|-----------------------------|--------------------|
| 2 to 4 years of experience: | Grade 201 - Step 3 |
| 4 to 6 years of experience: | Grade 201 - Step 4 |
| 6 + years of experience:    | Grade 201 - Step 5 |

c. Longevity Pay.

Effective July 1, 2004, eligible employees will be entitled to receive longevity pay based on years of service. Longevity raises will be effective on the employee's anniversary month.

d. Specialty On Call Pay.

Effective July 1, 2004, eligible employees will be entitled to receive specialty on call pay. Employees are limited to receiving compensation for a maximum of two specialties per month.

An eligible employee is one who serves as a first line supervisor (field training officer) or is required to be available for callout and does not receive any other compensation for being on call.

2. OVERTIME.

a. Patrol Officers and Patrol Sergeants.

All sergeants and officers who are called in for overtime duties will receive a minimum of two and one-half hours of overtime pay, excepting court appearances which are limited to one hour overtime pay or compensatory time if the time spent is one hour or less. All court time in excess of one hour is to be paid at time and one-half the classification rate. All patrol officers and patrol sergeants shall be limited to eighty hours of accumulated compensatory time, at which time, they must take paid overtime until they reduce below the eighty hour level.

All officers assigned acting sergeant duties will be compensated two hours overtime for each shift. All sergeants assigned acting lieutenant duties will be compensated one hour straight time for each shift.

Should the acting sergeant, lieutenant or captain duties extend beyond thirty consecutive days, the department may temporarily promote the officer, and place the officer in the appropriate pay grade of the new position.

3. HOLIDAYS.

The officers and sergeants of the City of Cheyenne Police Department will be entitled to those paid holidays that are set by Personnel Rules and Regulations of the City of Cheyenne effective February 17, 2015, and as enjoyed by personnel of other departments of the City.

The rate of pay for these holidays will be computed on the basis of 2,080 hours per year. The officer working a holiday has the option of taking overtime pay or compensatory time at one and one-half times the classification rate. If the holiday falls on an officer's regular day off, he will be given eight hours of straight pay or compensatory time. Likewise, if the holiday falls on the officer's vacation, or while on sick leave, the holiday will not be counted as vacation time or sick leave.

4. SICK LEAVE.

Each officer shall accumulate sick leave time at the rate of ten hours for each month of continuous employment to a maximum of six hundred forty hours.

Officers who have completed four years of continuous service and terminate from the City shall receive 50% of their accrued sick leave at their regular base rate, not to exceed 240 hours. In the case of retirement, an employee will be reimbursed fully for his or her accrued sick time up to 240 hours.

Officers who have not accumulated 480 hours at the beginning of the calendar year will be entitled to twenty-four hours of goodie time each year, provided they use not more than forty hours of sick leave during each calendar year. Officers who accumulate 480 hours at the beginning of the calendar year will be entitled to forty hours goodie time each year, provided they use no more than twenty-four hours of sick leave each calendar year; or thirty-two hours goodie time each year, provided they use no more than thirty-two hours of sick leave each calendar year; or twenty-four hours goodie time each year, provided they use no more than forty hours of sick leave each calendar year. Goodie days under this section shall not be accumulated. Officers entitled to the goodie time provided herein shall make application to the Chief of Police who shall schedule the goodie time having regard for the convenience of the department. Upon termination, the twenty-four, thirty-two or forty hours of goodie time are not paid as vacation.

For a period of one year following the date of an injury as defined in W.S. § 27-14-102(a)(xi) sustained in the line of duty for the Cheyenne Police Department, an officer who is totally disabled from performing any duties for the Department shall receive a monthly payment from the City in an amount equal to the difference between: (1) the amount of any monthly benefit received by the officer from any division of the Wyoming Department of Employment; and (2) the average amount of monthly pay received by the officer during the twelve month period preceding the date of injury, provided however, that if the officer has less than twelve months of service prior to the injury, his or her average monthly pay shall be computed on the basis of actual months of service. Upon the expiration of a period of one year following the date of an injury as defined in W.S. § 27-14-102(a)(xi), an officer who is totally disabled from performing any duties for the Cheyenne Police Department shall be required to use accumulated sick leave.

5. SICK BANK.

The Sick Bank is to be used by officers in the case of serious illness or injury which is not covered under Worker's Compensation, and after they have exhausted their accumulated sick leave.

The Sick Bank is to be established on the effective date of this policy with a balance of 1,200 hours contributed by the City. The Sick Bank will maintain a balance limited to 1,200 hours. This balance to be renewed by the City, if any days are used, on January 1<sup>st</sup> of each year.

A contributory pool (Sick Pool) of 4,160 maximum sick hours will be established on the effective date of this policy. Sworn officers with excess sick leave (over 640 hours) may contribute their excess sick leave to the Sick Pool January 1<sup>st</sup> of each year.

The Sick Bank and Sick Pool are to be administered by the Sick Bank Board. This Board will consist of the Chief of Police, the City Human Resources Director and the President of the Police Protective Association or his designee.

Policies and procedures for administering the Sick Bank and Sick Pool are to be made by the Sick Bank Board, including renewing depleted balances. These policies and procedures are to be in writing and available, upon request, to all sworn officers. Request for Sick Bank/Sick Pool hours are to be made in writing to the Sick Bank Board, in accordance with their policies and procedures. All requests for Sick Bank/Sick Pool must be approved by the Board prior to use of those days.

6. VACATION.

Each officer shall be entitled to a vacation of eighty-eight hours after one year of continuous service, and shall be entitled to an additional eight hours of vacation for each year of uninterrupted service provided that an officer is entitled to earn no more than 216 hours of vacation in any one year. Insofar as possible, vacation time shall be determined by division and squad, with seniority rank having preference within each division and squad.

Not more than 240 hours vacation accrual can be carried from one calendar year to the next calendar year. All officers with 240 hours vacation accrual at the beginning of a calendar year are required to use 120 hours of vacation each calendar year. Accumulated vacation between 240 hours and 336 hours on December 31 of each year shall be reimbursed with the December payroll. All vacation time over 336 hours shall be deemed waived.

On separation from service, an officer shall be paid for all accumulated vacation days earned and not taken, including the year of separation, proportionate to the time employed in that year.

7. PERSONAL DAY.

Each full-time uniformed police officer with one year of continuous service will be awarded one personal day each fiscal year. A personal day shall be defined as eight hours.

This personal day may be used by the employee at his or her discretion, with supervisory approval. Personal days must be used in the year in which they are awarded. Personal days cannot be used to extend a holiday or be broken into increments of less than a normal working day. They do not carry over from one year to the next.

8. REDUCTION IN FORCE.

Officers laid off in accordance with the provisions of this section will be eligible for rehire or reinstatement into a position of the same classification in the inverse order of layoff. If rehired or reinstated, however, no officer shall accumulate time in service during the period of lay off. An officer laid off under these provisions shall be protected for a period of twenty-four months from time of separation, pursuant to state statute. The department shall notify protected officers of any vacancy as soon as known to the department. The officer shall notify the department with-in five days of his or her receipt of notice of his or her intent and must report at least fifteen days after receipt of notice.

9. CLOTHING AND EQUIPMENT ALLOWANCES.

a. Clothing Allowance.

Detective personnel and others, as defined by the chief, shall be entitled to \$60.00 per month clothing allowance.

b. The department will provide all employees with the following equipment:

- i. Uniforms;
- ii. Ballistic vest;
- iii. Leather gear;
- iv. Handcuffs;
- v. Baton;
- vi. Duty t-shirts;
- vii. Handgun; and
- viii. Duty footwear.

10. MEDICAL AND LIFE INSURANCE.

All eligible commissioned officers may elect to participate in any of the health insurance plans offered by insurance companies contracted by the City to provide medical and life insurance.

11. EXTENSION OF MEDICAL COVERAGE.

a. All retirees may elect to participate in any of the health insurance plans offered by the City's health insurance provider. Premiums will be paid by retirees.

b. If an officer sustains an injury as defined in W.S. § 27-14-102(a)(xi) in the line of duty for the Cheyenne Police Department and is awarded permanent total disability benefits as defined in W.S. § 27-14-102(a)(xvi), or if an officer dies as a result of an injury as defined in W.S. § 27-14-102(a)(xi) sustained in the line of duty, the officer and his or her eligible dependents shall be offered health insurance at the expense of the City subject to the following terms and conditions:

i. The City's obligation to provide health insurance coverage for the officer shall terminate when the officer becomes eligible for coverage under Medicare or Medicaid;

ii. The City's obligation to provide health insurance for the officer's spouse shall terminate when the spouse re-marries, becomes eligible for health insurance coverage under any employer-sponsored health insurance program, or becomes eligible for Medicare or Medicaid, whichever occurs first; and

iii. The City's obligation to provide health insurance coverage for an eligible dependent of the officer shall terminate when that dependent reaches the age of twenty-six years, or becomes eligible for Medicare or Medicaid, whichever first occurs.

c. For the purposes of this paragraph (§ 11), the word "spouse" shall refer only to the person to whom the officer is legally married at the time the officer is awarded permanent total disability benefits as defined by W.S. § 27-14-102(a)(xvi) and the phrase "eligible dependent" shall refer only to a child of the officer, including any child adopted by the officer before the child reached the age of fourteen years. Step-children, foster children, and wards of the officer under any guardianship or conservatorship may be eligible dependents for coverage under the plan documents for health insurance coverage provided by the City.

In the case of a qualifying event, the eligible person may change his or her election within thirty days of said qualifying event or wait until open enrollment.

The City of Cheyenne may from time to time require verification of permanent disability of member, of full time student status or mental or physical disability.

## 12. PPA BUSINESS.

With prior immediate supervisor and division head approval, time off may be given for conducting PPA business including lobbying at the state legislature.

## 13. DUES FOR MEMBERSHIP.

The dues for membership in the PPA shall be set forth by the PPA by-laws. The City agrees to deduct this sum, as a payroll deduction, from such member's monthly paycheck and remit these dues to the PPA.

14. NEW LANGUAGE.

All proposed changes to the wage and benefit policy will be distributed in writing a minimum of thirty days prior to the effective date. The staff officers of the department will be available to discuss and explain and take any comments relative to the proposed change. All other policies will be distributed in writing and once each year updated in this manual.

**EXHIBIT B**

**CITY OF CHEYENNE**  
**POLICE DEPARTMENT PATROLMEN**

**PAY PLAN SCHEDULE**

Effective July 1, 2016

| <b>Grade 201<br/>Step</b> | <b>Hourly Rate</b> | <b>Monthly Rate</b> |
|---------------------------|--------------------|---------------------|
| 1                         | \$ 24.0431         | \$ 4,167.47         |
| 2                         | \$ 24.5233         | \$ 4,250.71         |
| 3                         | \$ 25.2376         | \$ 4,374.52         |
| 4                         | \$ 26.2349         | \$ 4,547.38         |
| 5                         | \$ 27.3829         | \$ 4,746.37         |
| 6                         | \$ 28.6102         | \$ 4,959.10         |
| 7                         | \$ 29.9109         | \$ 5,184.56         |
| 8 to 25                   | \$ 31.3605         | \$ 5,435.82         |

**EXHIBIT C**

**CITY OF CHEYENNE**  
**POLICE DEPARTMENT-ABOVE RANK OF PATROLMEN**

**PAY PLAN SCHEDULE**

Effective February 1, 2017

| Grade 202 - Sergeants |             |              | Grade 203 - Lieutenants |             |              |
|-----------------------|-------------|--------------|-------------------------|-------------|--------------|
| Years of Service      | Hourly Rate | Monthly Rate | Years of Service        | Hourly Rate | Monthly Rate |
| 1                     | \$ 33.3899  | \$ 5,787.58  | 1                       | \$ 40.8654  | \$ 7,083.33  |
| 2                     | \$ 34.8742  | \$ 6,044.86  | 2                       | \$ 43.2693  | \$ 7,500.00  |

| Grade 204 - Captains |             |              | Grade 306 - Deputy Chief |             |              |
|----------------------|-------------|--------------|--------------------------|-------------|--------------|
| Years of Service     | Hourly Rate | Monthly Rate | Years of Service         | Hourly Rate | Monthly Rate |
| 1                    | \$ 47.5962  | \$ 8,250.00  | 1                        | \$ 50.1314  | \$ 8,689.42  |
| 2                    | \$ 50.1314  | \$ 8,689.42  |                          |             |              |

Note: An officer who is promoted to sergeant, lieutenant or captain will be placed in a grade which provides a promotional raise of a minimum of 5%.

**EXHIBIT D**

**CITY OF CHEYENNE**  
**POLICE DEPARTMENT**

**LONGEVITY PAY PLAN SCHEDULE**

July 1, 2008

| <b>Years of Service</b> | <b>Payment Per Month</b> |
|-------------------------|--------------------------|
| Nine to Twelve          | \$ 70.00                 |
| Thirteen to Sixteen     | \$ 75.00                 |
| Seventeen to Twenty     | \$ 85.00                 |
| Twenty-One or More      | \$ 95.00                 |

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**EXHIBIT E**

**CITY OF CHEYENNE**  
**POLICE DEPARTMENT**

**SPECIALTY ON CALL PAY PLAN SCHEDULE**

July 1, 2017

| <b>Specialty</b>                  | <b>Level</b> | <b>Payment Per Month</b> |
|-----------------------------------|--------------|--------------------------|
| Explosive Ordnance Tech           | Level I      | \$125.00                 |
| Field Training Officer            | Level I      | \$125.00                 |
| SWAT Team Member                  | Level I      | \$125.00                 |
| Arson Investigator                | Level II     | \$100.00                 |
| Crash Reconstruction Investigator | Level II     | \$100.00                 |
| Crisis Negotiation Unit           | Level II     | \$100.00                 |
| Detective                         | Level II     | \$100.00                 |
| Drug Recognition Expert           | Level II     | \$100.00                 |
| K-9 Handler                       | Level II     | \$100.00                 |